

**SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA**

Tentative Ruling

**2026CUPP063063: MICHAEL MATHIS, AN INDIVIDUAL, et al. vs THE THACHER
SCHOOL, A CALIFORNIA NONPROFIT CORPORATION
07/15/2026 in Department 20
Demurrer**

The morning calendar in courtroom 20 will normally begin at 8:30 a.m. Please arrive for your hearing no later than 8:20 a.m. The door will be opened before the calendar is called.

For Zoom appearances, all counsel appearing by Zoom must follow the instructions and procedures for Courtroom 20 on the Ventura Superior Court website. IF YOU DO NOT DO SO, YOU WILL NOT BE PERMITTED TO APPEAR BY ZOOM AT THE HEARING.

With respect to the tentative ruling below, no notice of intent to appear is required. If you wish to submit on the tentative ruling, you may email Courtroom20@ventura.courts.ca.gov with all counsel copied on the email. Do not call in lieu of sending an email. If you submit on the tentative without appearing and the opposing party appears, the hearing will be conducted in your absence. If you are the moving party and do not advise the Court that you submit on the tentative, or you do not appear at the hearing, the Court may deny your motion irrespective of the tentative.

Unless stated otherwise at the hearing, if a formal order is required but not signed at the hearing, the prevailing party shall prepare a proposed order and comply with CRC 3.1312 subdivisions (a), (b), (d), and (e). The signed order shall be served on all parties and a proof of service filed with the court. A "notice of ruling" in lieu of this procedure is not authorized.

Motion: Defendant The Thacher School's Demurrer to the Complaint

Tentative: The Court notes the following deficiencies in the demurrer:

(1) Defendant has failed to comply with California Rule of Court, rule 3.1320 in not filing the demurrer itself; and

(2) Defense counsel has not provided information to establish the parties met and conferred in person, by telephone, or by video conference as required by Code of Civil Procedure section 430.41.

Neither defect is fatal to the demurrer. The Court proceeds to the merits as follows:

(1) Defendant The Thacher School's special demurrer to the fourth cause of action for intentional infliction of emotional distress, on the ground of uncertainty pursuant to Code of Civil Procedure, section 430.10, subdivision (f), is OVERRULED.

(2) Defendant The Thacher School's general demurrer to the fourth cause of action for intentional infliction of emotional distress, on the ground of failure to state facts sufficient to

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constitute a cause of action pursuant to Code of Civil Procedure, section 430.10, subdivision (e) is OVERRULED. Sufficient facts are alleged of extreme and outrageous conduct by the Defendant taken with reckless disregard of the probability of causing Plaintiffs emotional distress, which conduct caused the Plaintiffs to suffer extreme emotional distress.

Defendant shall file and serve its Answer to the Complaint on or before July 27, 2026.

Defendant shall give notice.